

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #3	CCRB Case #: 201903626	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/22/2019 9:52 AM	Location of Incident: West 207th Street and 9th Avenue	Precinct: 34	18 Mo. SOL 10/22/2020	EO SOL 6/8/2021	
Date/Time CV Reported Mon, 04/29/2019 12:16 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 04/29/2019 12:16 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Joseph Navarrete	19998	958656	034 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Joseph Navarrete	Abuse: Police Officer Joseph Navarrete searched the vehicle in which § 87(2)(b) was an occupant.				

Case Summary

On April 29, 2019, § 87(2)(b) filed this complaint online with the CCRB.

On April 22, 2019, at approximately 9:52 a.m., § 87(2)(b) was driving with her nephew, § 87(2)(b) and her two young children in the vicinity of West 207th Street and 9th Avenue, in Manhattan. She ran a red light, and was pulled over by PO Joseph Navarrete, of the 34th Precinct, who issued her a summons. PO Navarrete approached § 87(2)(b) to hand her the summons and return her documentation, and she did not take it. They got into an argument about the summons. Eventually, PO Navarrete reached into the car through the driver's side window and dropped the summons and documents on the dashboard of § 87(2)(b)'s car (**Allegation A – Abuse of Authority: § 87(2)(g)**). PO Navarrete returned to his car and had no further interaction with § 87(2)(b).

The footage was recorded on PO Navarrete's body worn camera.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joseph Navarrete searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) (Board Review 01) stated that she was asking PO Navarrete questions about what she had to do with the summons, which he did not respond to. Then, PO Navarrete reached through the window with both arms up to around his biceps and threw the summons and documents onto the dashboard of the car. After that, he immediately withdrew his arms and left. § 87(2)(b) (Board Review 02) corroborated that PO Navarrete reached into the car and up to the steering wheel to put the summons on the dashboard, but could not recall whether he did so with one or both hands.

PO Navarrete (Board Review 03) confirmed that he reached into the car to put the summons on the dashboard, but stated that he did so with one hand and only to the far-left part of the dashboard against the window. He could not recall how far into the car he had to reach, but it was not far. He stated that he decided to reach into the car because he had asked § 87(2)(b) repeatedly to take the documents and she had ignored him. She had been asking him the same questions about what would happen with the summons repeatedly, and he had already answered her. PO Navarrete was also concerned that they were blocking traffic as § 87(2)(b) was parked in a bus lane and he was partially blocking a lane of traffic in a busy intersection, requiring cars to pull around them to pass.

The body worn camera of PO Navarrete (Board Review 04) shows that he did hold out the summons and documents to § 87(2)(b) and made three requests for § 87(2)(b) to take them, which she ignored. Further, they corroborate PO Navarrete's testimony that he did explain to § 87(2)(b) what to do with the summons, § 87(2)(g). It shows that § 87(2)(b) started to complain about the summons that she was getting, and ignored PO Navarrete's requests to take the summons and documents. The footage does not show PO Navarrete's hand as it reaches into the car, but shows him approaching the car for one second while he drops the summons outside of the camera's view; however, it clearly shows that PO Navarrete's right hand never entered the window of § 87(2)(b)'s car.

Per People v. Hernandez, when an officer breaks the plane of the vehicle, such conduct constitutes a vehicle search and requires probable cause (People v. Hernandez 238 A.D.2d 131 [1997]) (Board Review 10). However, in People v. Lawson, in an exception to the probable cause standard, the courts found permissible an officer's brief and limited intrusion into the

passenger area of a vehicle, not for searching or discovering evidence, but to lawfully and safely remove the occupants (People v. Lawson, 36 Misc. 3d 1212(A) [2012]) (Board Review 11).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been a party (Board Review 06).
- PO Joseph Navarrete has been a member-of-service for four years and has been a subject in one previous CCRB allegation in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A request for any Notice of Claim related to the incident was sent to the New York City Comptroller's Office on July 8, 2019. There has been no response as of the date of this request (Board Review 09).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date